right or the successors, assigns, or lessees thereof, will repair or replace any improvements damaged or destroyed by the mining operations and restore the land to a condition safe and reasonably serviceable for authorized programs of the Forest Service, and shall provide for a bond in sufficient amount as determined necessary by the Forest Service to guarantee such repair, replacement or restoration.

(iv) Failure to comply with the terms and conditions of the aforesaid permit shall be cause for termination of all rights to use, occupy, or disturb the surface of the lands covered thereby, but in event of such termination a new permit shall be issued upon application when the causes for termination of the preceding permit have been satisfactorily remedied and the United States reimbursed for any resultant damage to it.

(3) All structures, other improvements, and materials shall be removed from the lands within one year after date of termination of the aforementioned permit. Should the holder of the permit fail to do so within the specified time, the Forest Service may remove, destroy or otherwise dispose of said structures, other improvements, and materials at the permittee's expense, or in lieu thereof, may upon written notice to the permittee, assume title thereto in the name of the United States.

(4) Timber and/or young growth cut or destroyed in connection with exercise of the reserved right shall be paid for at rates determined by the Forest Service to be fair and equitable for comparable timber and/or young growth in the locality. All slash resulting from cutting or destruction of timber or young growth shall be disposed of as required by the Forest Service.

(5) In the prospecting for, mining, and removal of reserved minerals, oil, gas, or other inorganic substances all reasonable provisions shall be made for the disposal of tailings, dumpage, and other deleterious materials or substances in such manner as to prevent obstruction, pollution, or deterioration of water resources.

(6) Nothing herein contained shall be construed to exempt operators or the mining operations from any requirements of applicable State laws nor from compliance with or conformity to any requirements of any law which later may be enacted and which otherwise would be applicable.

(7) While any activities and/or operations incident to the exercise of the reserved rights are in progress, the operators, contractors, subcontractors, and any employees thereof shall use due diligence in the prevention and suppression of fires, and shall comply with all rules and regulations applicable to the land.

(b) The conditions, rules and regulations set forth in subparagraphs (1) through (7) of paragraph (a) of this section shall not apply to reservations contained in conveyances of lands to the United States under the Act of March 3, 1925, as amended (43 Stat. 1133, 64 Stat. 82; 16 U.S.C. 555).

(c) In cases where a State, or an agency, or a political subdivision thereof, reserves minerals, oil, gas, or other inorganic substances, in the conveyance of land to the United States under authorized programs of the Forest Service and there are provisions in the laws of such State or in conditions, rules and regulations promulgated by such State, agency or political subdivision thereof, which the Chief, Forest Service, determines are adequate to protect the interest of the United States in the event of the exercise of such reservation, the Chief, Forest Service, is hereby authorized, in his discretion, to subject the exercise of the reservation to such statutory provisions or such conditions, rules and regulations in lieu of the conditions, rules and regulations set forth in subparagraphs (1) through (7) of paragraph (a) of this section. In that event, such statutory provisions or such conditions, rules and regulations shall be expressed in and made a part of the deed of conveyance to the United States and the reservation shall be exercised thereunder and in obedience thereto.

All regulations heretofore issued by the Secretary of Agriculture to govern the exercise of mineral rights reserved in conveyances of lands to the United States under authorized programs of the Forest Service shall continue to be effective in the cases to which they are applicable, but are hereby superseded as to mineral rights hereafter reserved in conveyances under such programs.

(30 Stat. 35, as amended, 16 U.S.C. 551. Interprets or applies 36 Stat. 961, as amended, 16 U.S.C. 513–519, 42 Stat. 465, as amended, 16 U.S.C. 485, 486, and 50 Stat. 525, as amended, 7 U.S.C. 1011)

Signed at Washington, D.C., on April 30, 1963.

ORVILLE L. FREEMAN,
*Secretary.*

[F.R. Doc. 63–4753; Filed, May 2, 1963; 8:50 a.m.]

# Title 43—PUBLIC LANDS: INTERIOR

## Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2968]

[Utah 081486]

### UTAH

### Withdrawal For Forest Service Recreation Area

*Correction*

In F.R. Doc. 63–3048 appearing in the issue for Saturday, March 23, 1963, at page 2908, the 4th entry under "T. 35 S., R. 20 E.," should read: "Sec. 28, N½, N½S½, and S½SE¼".

[Public Land Order 3047]

[Idaho 013802]

### IDAHO

### Partly Revoking Executive Order No. 7655 of July 12, 1937

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 7655 of July 12, 1937, which established the Deer Flat Migratory Waterfowl Refuge, the name of which was changed to the Deer Flat National Wildlife Refuge by Presidential Proclamation No. 2416 of July 25, 1940 (54 Stat. 2720), is hereby revoked so far as it affects the following described lands:

BOISE MERIDIAN

T. 3 N., R. 3 W.,
Sec. 15, that portion of the SW¼SW¼ lying north of the centerline of Orchard Avenue.

Upon acceptance of supplemental plat of survey, the lands probably will be described as follows:

T. 3 N., R. 3 W.,
Sec. 15, lots 1, 2, and 3.

Containing approximately 32 acres.

This revocation is made in furtherance of an exchange under the provisions of the act of June 28, 1934 (48 Stat. 1272; 43 U.S.C. 315g), as amended, by which the offered lands will benefit a Federal Land Program. This restoration is, therefore, not subject to the provisions of subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852), granting to certain States a preference right of application upon the revocation of an order of withdrawal.

JOHN A. CARVER, JR.,
*Assistant Secretary of the Interior.*

APRIL 26, 1963.

[F.R. Doc. 63–4711; Filed, May 2, 1963; 8:47 a.m.]

[Public Land Order 3048]

[Fairbanks 029419]

### ALASKA

### Revocation of Air Navigation Site Withdrawal No. 219 of July 28, 1944

By virtue of the authority contained in section 4 of the Act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. The Departmental order of July 28, 1944, which withdrew the following described lands for use of the Civil Aeronautics Administration in connection with construction and maintenance of air navigation facilities is hereby revoked:

CAPE NOME AREA

Beginning at a point marked by a post, 4 inches square, on the line of ordinary high tide of Norton Sound, in a cove on the east side of Cape Nome, approximate latitude 64°26′ N., longitude 165°00′ W.

From the initial point; North, 3 miles; East, 4.50 miles; South, 2.50 miles, to a point on line of ordinary high tide, Norton Sound; Westerly, 4.75 miles, along the line of ordinary high tide, Norton Sound, to the place of beginning.

Containing 5,600 acres.

2. The lands are located approximately 15 miles southeast of Nome, Alaska. The terrain varies from peaks of 646 feet, to marshy, flat areas. The vegetative cover is mostly tundra type mosses, muskeg bogs, and berry bushes.